

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MICHAEL WARD,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. OMER LATIF and P.O. JOANNA SELOCK,

Defendants.

----- X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 18, 2021

Type text here

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-THE CITY OF NEW YORK, c/o NYC Corporation Counsel, 100 Church Street, New York, NY 10007

-P.O. OMER LAFIF, c/o NYPD 61th Pct., 2575 Coney Island Ave, Brooklyn, NY 11223

-P.O. JOANNA SELOCK, c/o NYPD 61th Pct., 2575 Coney Island Ave, Brooklyn, NY 11223

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MICHAEL WARD,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. OMER LATIF and P.O. JOANNA SELOCK,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).
4. That at all times herein mentioned, defendant Omer Latif (hereinafter “Latif”) was and is an officer employed by the NYPD.
5. That at all times herein mentioned, Latif was acting within the course and scope of his employment with the NYPD.
6. That at all times herein mentioned, Latif was acting under color of state law.

7. That at all times herein mentioned, defendant Joanna Selock (hereinafter “Selock”) was and is an officer employed by the NYPD.

8. That at all times herein mentioned, Selock was acting within the course and scope of her employment with the NYPD.

9. That at all times herein mentioned, Selock was acting under color of state law.

10. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notices of claim and intention to sue were duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

THE FACTS

The December 30, 2019 Incident

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about December 30, 2019, at or around the intersection of Bragg Street and Avenue V, Brooklyn, NY, NYPD officers, including but not limited to Latif and Selock (hereinafter referred to collectively as “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense, or violation, and without otherwise being justified, forcibly stopped the motor vehicle that plaintiff was operating and then forcibly seized, grabbed, and removed plaintiff from the vehicle.

13. That after forcibly removing plaintiff from the vehicle, the officers forcibly

handcuffed plaintiff and searched plaintiff and the vehicle, again without a warrant, probable cause, or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense, or violation, and without otherwise being justified.

14. That the officers then imprisoned plaintiff and/or caused plaintiff to be imprisoned at various locations, including a police vehicle, the 61st Police Precinct, and Central Booking.

15. That after he was falsely imprisoned and incarcerated overnight, plaintiff was released from custody without any criminal charges or violations having been filed against him and without having any summonses or other accusatory instruments having been issued to him.

16. That Latif and Selock observed the unlawful and unconstitutional actions of his and her fellow officers, had opportunities to intervene to prevent and/or stop those actions, and deliberately failed to do so.

17. That the aforesaid actions of the officers were undertaken collectively and in concert with one another.

18. That the aforesaid actions of the officers were intentional and malicious in nature.

19. That as a result of the foregoing, plaintiff was deprived of liberty and endured and continues to endure physical and emotional pain and suffering and loss of enjoyment of life.

The May 23, 2020 Incident

20. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

21. That on or about May 23, 2020, at or around the intersection of Shore Parkway and Ocean Avenue, Brooklyn, NY, NYPD officers (hereinafter referred to collectively as “the

officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense, or violation, and without otherwise being justified, forcibly stopped the motor vehicle that plaintiff was operating and then forcibly seized, grabbed, and removed plaintiff from the vehicle.

22. That after forcibly removing plaintiff from the vehicle, the officers forcibly handcuffed plaintiff and searched plaintiff and the vehicle, again without a warrant, probable cause, or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense, or violation, and without otherwise being justified.

23. That the officers then imprisoned plaintiff and/or caused plaintiff to be imprisoned at various locations, including a police vehicle and the 61st Police Precinct.

24. That after he was falsely imprisoned and incarcerated for several hours, plaintiff was released from custody without any criminal charges or violations having been filed against him and without having any summonses or other accusatory instruments issued to him.

25. That the aforesaid actions of the officers were undertaken collectively and in concert with one another.

26. That the aforesaid actions of the officers were intentional and malicious in nature.

27. That as a result of the foregoing, plaintiff was deprived of liberty and endured and continues to endure physical and emotional pain and suffering and loss of enjoyment of life.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
ARISING OUT OF THE DECEMBER 30, 2019 INCIDENT
(False Arrest/False Imprisonment Under NY State Law)

28. Plaintiff repeats and realleges each and every allegation set forth above as

though fully set forth at length herein.

29. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
ARISING OUT OF THE DECEMBER 30, 2019 INCIDENT
(Assault and Battery Under NY State Law)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforesaid actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST LATIF and SELOCK
ARISING OUT OF THE DECEMBER 30, 2019 INCIDENT
(Fourth Amendment Violations: 42 U.S.C. § 1983)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the actions of the officers in forcibly stopping and searching plaintiff without his consent and without justification, and then in arresting and imprisoning plaintiff without a warrant and without probable cause, constitute illegal and unreasonable searches and seizures of plaintiff, in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST LATIF and SELOCK
ARISING OUT OF THE DECEMBER 30, 2019 INCIDENT
(Failure to Intervene: 42 U.S.C. § 1983)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That these defendants' failure to intervene to stop or prevent the unlawful and unconstitutional actions of their fellow officers entitles plaintiff to recover damages from these defendants pursuant to 42 U.S.C. § 1983.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY
ARISING OUT OF THE MAY 23, 2020 INCIDENT
(False Arrest/False Imprisonment Under NY State Law)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE CITY
ARISING OUT OF THE MAY 23, 2020 INCIDENT
(Assault and Battery Under NY State Law)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

39. That the aforesaid actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under New York state law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

40. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Latif and Selock, and attorney's fees against Latif and Selock pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
March 18, 2021

Yours, etc.
SIVIN, MILLER & ROCEH, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
March 18, 2021

Edward Sivin

EDWARD SIVIN